

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 13, 2026
8:30 AM/1:30 PM

20. SIERRA OLSON V. JUAN CHAVEZ

PFL20140209

Respondent filed a Request for Order (RFO) on April 6, 2026, along with a declaration regarding address verification, a declaration under the UCCJEA, and a declaration regarding visitation and records. There is no Proof of Service for these documents.

Petitioner filed a responsive declaration on May 6, 2026, which does not object to service, therefore, the court deems the issue to be waived. Petitioner objects to Respondent's requests for custody and parenting plan orders.

Respondent filed a declaration on May 12, 2026. It was mail served on May 12, 2026.

The court rereferred the parties to Child Custody Recommending Counseling (CCRC) and set a further review hearing for August 13, 2026, at 1:30 PM in Department 5.

Both parties attended CCRC on July 2, 2026, and were able to reach agreements. A report with the parties' agreements and further recommendations was filed with the court on July 9, 2026, and mailed to the parties on July 10th.

The court has read and considered the filings as outlined above. The court finds the section titled Agreements to be in the best interest of the minor with the following modifications. The court is striking "Mother and" from section 1 under Alcohol or Substance Abuse on page seven of 10. The court finds there is no evidence to support an abstention order restricting Petitioner. As to the recommendations portion, the court is not adopting the provision labeled Initial Agreement.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #20: THE COURT FINDS THE SECTION MARKED AGREEMENTS TO BE IN THE BEST INTEREST OF THE MINOR WITH THE FOLLOWING MODIFICATIONS. THE COURT IS STRIKING "MOTHER AND" FROM SECTION 1 UNDER ALCOHOL OR SUBSTANCE ABUSE ON PAGE SEVEN OF 10. THE COURT FINDS THERE IS NO EVIDENCE TO SUPPORT AN ABSTENTION ORDER RESTRICTING PETITIONER. AS TO THE RECOMMENDATIONS PORTION THE COURT IS NOT ADOPTING THE PROVISION LABELED INITIAL AGREEMENT.

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ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.